

SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.

Case Number: 23CV-0202926

Tentative Ruling on Motion to Vacate and Set Aside Default and Motion to Vacate and Set Aside Default

Judgment: Defendants Marikit Del Rosario Sabet, Rosalinda Gilbert-Ahrens and Steve Ahrens (hereinafter “Defendants”) move pursuant to CCP § 473(b) to set aside their default based on counsel’s mistake, inadvertence and neglect. Defendants move separately pursuant to CCP § 473(b) to set aside their default *judgment* based on counsel’s mistake, inadvertence and neglect. The issues of both motions are nearly identical and will be addressed together.

Merits of Motion: Defendants seek to have their default and default judgment vacated pursuant to CCP § 473(b) based on defense counsel’s mistake, inadvertence or neglect. CCP § 473 states in pertinent part:

“the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

Defense counsel, Jeffrey Swanson, has submitted a declaration stating that the “default entered against Defendants...was entered because of my mistake, inadvertence and neglect.” He also states that he was Defendants counsel prior to March 4, 2024 (the date the default was entered), that he had received a copy of the complaint in 2023 and was late in filing the answer. Finally, he provides that the mistake was his alone and was not the mistake of his client and was not an intentional strategic decision. Based on the foregoing, the Court finds that defense counsel has sufficiently establish his mistake was the cause of the default and default judgment. A stay is now in effect as to Defendants Rosalinda Gilbert-Ahrens and Steve Ahrens and therefore relief can only be granted as to Defendant Marikit Del Rosario Sabet.

The motions are **GRANTED** as to Defendant Marikit Del Rosario Sabet only. This proceeding is stayed as to Defendants Rosalinda Gilbert-Ahrens and Steve Ahrens and therefore the matter is dropped from calendar and may be placed back on calendar if the stay is lifted. Proposed orders were lodged with the Court and will be modified to reflect the Court’s final ruling.

Tentative Ruling on Motion to Set Aside and Vacate Default: Defendants David Howland and Lori Howland (hereinafter “Defendants”) move pursuant to CCP § 473(b) to set aside their default based on counsel’s mistake, inadvertence and neglect.

Merits of Motion: Defendants seek to have their default vacated pursuant to CCP § 473(b) based on defense counsel’s mistake, inadvertence or neglect. CCP § 473 states in pertinent part:

“the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

Defense counsel, Scott Johannessen, has submitted a declaration stating that he was Defendants counsel prior to March 4, 2024 (the date the default was entered) and was late in filing the answer because he was preparing a brief for the Ninth Circuit Court of Appeals. Defense counsel even informed Plaintiff that an answer would be filed the week after. The answer was in fact filed the week after, but Plaintiff had already sought and obtain Defendants' default. The Court finds that defense counsel has sufficiently establish his mistake was the cause of the default. The Court will set aside the default and the default judgment upon which it is based.

The motion is **GRANTED**. No proposed order was lodged with the Court. Defendants shall prepare the order.

9:00 a.m. – Review Hearings

AUGUST VS. KAPANOSKE, ET AL.

Case Number: 23CV-0203195

This matter is on calendar for trial setting. Plaintiff was to five notice and file proper proof of service. Proof of service has not been filed. Should all parties appear despite the lack of service, the Court intends to set the mater for trial. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than February 4, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

This matter is on calendar for review regarding status of the case. The Court notes that Defendant M. K. & A. has new counsel as of May 22, 2024. The Court notes that the litigation is at issue and the matter is ready to be set for trial. However, the matter was on calendar this morning for Plaintiff's Motion for Leave to File Amended Complaint that was denied for a lack of service on Defendant. **An appearance is necessary on today's calendar to discuss whether this matter is ready to be set for trial, and if appropriate, to set a trial date.**

BROWN VS. ZINCO HOLDING, LLC.ET. AL.

Case Number: CVCV21-0198122

This matter is on calendar to reset a court trial that has a 2-3 day time estimate. This matter has been deemed exempt from plan designation, however, the Court intends to set the matter for trial before the end of 2024. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for court trial. **An appearance is necessary on today's calendar.**

CITY OF ANDERSON VS. KRUMINS, ET AL.

Case Number: 23CV-0203032

This matter is on calendar for review regarding status of property/removal of Respondents' remaining items. The Court has reviewed the Eleventh Report of the Receiver which indicates the property is ready to be listed for sale. **An appearance is necessary on today's calendar.**

HICKS, ET AL. VS. PARTIN, ET AL.

Case Number: 22CV-0201086

This matter is on calendar for status of arbitration. The Court has reviewed the Joint Status Statement filed on September 9, 2024. The matter is continued to **Monday, November 18, 2024 at 9:00 a.m. in Department 63** for review regarding status of arbitration. **No appearance is necessary on today's calendar.**